



Gotabgaa Australia

Governance Structure

Proposed model for national organisation · June 2026

Unity • Heritage • Excellence

Independent Australian association

Foundation: Based on the existing Gotabgaa International By-Laws, the classical structure has three main organs: **Membership**, **Board of Directors**, and **Oversight & Compliance Council**. This document proposes a modern governance model for **Gotabgaa Australia** that separates governance (Board), management (Executive), and oversight (Council) — considered best practice for large community organisations.

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1. Three Core Organs

Membership

General Assembly (AGM) —
supreme authority

Board of Directors

National Council — strategy &
policy

Oversight & Compliance Council

Independent — ethics,
elections, disputes

Management (National Executive Committee) implements Board decisions day-to-day. **State chapters** deliver programs locally under this national framework.

2. General Assembly (AGM)

Supreme decision-making body

Meets annually

Composition

- All registered and financial members

Powers

- Elect National Executive
- Elect Oversight & Compliance Council
- Amend Constitution
- Approve annual reports and audited accounts
- Ratify strategic plans and major policies

2.1 AGM operational rules (recommended)

Item	Recommended standard
Notice period	At least 21 days written notice to all financial members (email + website)
Quorum	Minimum 25% of financial members, or 50 members, whichever is lower (set in constitution)
Chair of AGM	National Chairperson, or Deputy if unavailable
Minutes	Secretary General records; approved at following AGM
Constitutional amendments	66% majority of members present and voting; 30-day prior notice
Special resolutions	Dissolution, major asset sale — supermajority as per constitution
Proxy voting	Allowed if constitution permits; one proxy per member maximum

3. Board of Directors (National Council)

Strategic leadership & policy

Meetings: quarterly minimum

Composition

Position	Role on Board
National Chairperson	Board leadership
Deputy Chairperson	Deputy board leadership
Secretary General	Records & governance administration
Deputy Secretary	Supports Secretary General
Treasurer	Financial oversight
Deputy Treasurer	Supports Treasurer
Communications Director	Public messaging & media strategy
Youth Representative	Youth voice on board
Women Representative	Women's voice on board
Welfare Director	Welfare policy oversight
Business & Investment Director	Economic empowerment portfolio
Education & Professional Development Director	Education portfolio
State Chapter Representatives	One representative from each state chapter

Role of the Board

- Strategic leadership and long-term vision for Gotabgaa Australia
- Policy formulation (welfare, education, finance, communications, events)
- Oversight of National Executive — reviews performance at least quarterly
- Approval of annual budgets, audited accounts, and major projects above set thresholds

- Appointment of ad hoc committees; receives reports from standing committees
- Ratification of new state chapter recognition (recommendation from Executive)

Board meeting protocol

- Quarterly scheduled meetings; extraordinary meetings on Chair or 3 directors' request
- Quorum: majority of board members (including at least 2 executive officers + 1 state rep)
- Agenda circulated 7 days in advance; minutes within 14 days after meeting
- Executive may attend without vote on items where they are subject of performance review

4. National Executive Committee

Day-to-day operations & implementation

Accountable to the Board of Directors

Executive positions

#	Position	Primary focus
1	National Chairperson	Executive leadership
2	Deputy Chairperson	Deputy executive leadership
3	Secretary General	Administration & correspondence
4	Deputy Secretary	Administrative support
5	Treasurer	Day-to-day finance operations
6	Deputy Treasurer	Financial operations support
7	Communications Director	Website, social media, newsletters
8	Welfare Director	Member welfare programs
9	Programs & Events Director	National calendar & events
10	Membership Director	Recruitment & member records

Responsibilities

- Implement Board decisions within 30 days or report obstacles to Board
- Manage daily operations, staff/volunteers, and national email/website
- Coordinate state chapters via monthly state chair calls (minimum quarterly)
- Prepare quarterly operational reports and annual budget for Board approval
- Executive meetings: monthly minimum; minutes to Secretary General archive

5. Oversight, Ethics & Compliance Council

Independent organ — separate from Executive and Board

Strengthens oversight contemplated in Article 6 (By-Laws reference)

Composition (5 members)

- Chairperson
- Secretary
- Three Council Members

Functions

- Election supervision and certification of results
- Dispute resolution per published procedure (Section 20)
- Disciplinary hearings for breaches of code of conduct
- Governance audits — annual checklist of compliance with constitution
- Constitutional interpretation when Board and Executive disagree
- Conflict of interest investigations; may require officer to step aside temporarily

Term & meetings

- 3-year terms; members elected at AGM; one renewal permitted (recommended)
- Minimum bi-annual meetings; extraordinary session on written request of 10+ members
- Annual report to AGM on elections integrity and dispute statistics (confidential details omitted)

Independence rule: Members cannot simultaneously serve on the Oversight Council and:

- National Executive Committee
- Board of Directors
- State Executive Committees

6. Electoral Commission

Temporary independent body

Dissolved after elections conclude

Composition

5–7 members appointed by the Oversight & Compliance Council.

Functions

- Conduct elections for Executive, Oversight Council, and Board positions as required
- Vet candidates: membership standing, conduct history, conflict declarations
- Manage voter register; verify financial membership status before ballot
- Announce results publicly after Oversight Council certification
- Preserve sealed ballots or digital audit logs for 12 months

Dissolution: Commission dissolves within 30 days after results certified and officers installed.

7. National Advisory Council (Elders & Founders)

Advisory only — no executive powers

Composition

- Founders
- Former National Chairpersons
- Distinguished community leaders

Role

- Advisory guidance on culture, heritage, and long-term direction
- Mediation and mentorship
- No voting power on Executive or Board decisions

8. National & State Association Relationship

Starting point: Kalenjin community associations already operate at state level (events, welfare, sports days, Taunet Nelel gatherings, city networks). Gotabgaa Australia at national level should **unify and strengthen** those bodies — not replace, absorb, or override them without consent.

8.1 Recommended model: Federated partnership

The recommended relationship is a **federation**: each existing state association remains a legal and operational entity in its own right, and **joins** Gotabgaa Australia as a **recognised state chapter** through a signed Memorandum of Understanding (MOU). National sets country-wide strategy, brand, and programs; states deliver locally with autonomy in day-to-day affairs.

Principle	What it means in practice
Autonomy	State associations keep their own executive, AGM, bank account, and local constitution (or adopt national template)
Recognition	National Board formally recognises each state as the official Gotabgaa Australia chapter for that state/territory
One national brand	Public face: "Gotabgaa Australia — [State] Chapter" under shared logo and tagline
Dual accountability	State leaders answer to state members locally and to national policy through state rep on Board
No takeover	National cannot appoint state chairs or seize state funds without MOU breach and Oversight Council process
Voluntary alignment	States choose to federate; withdrawal possible with notice per MOU (see 8.8)

8.2 Relationship models — comparison

Model	Description	Pros	Cons	Fit for Gotabgaa Australia?
A. Federation (recommended)	National + autonomous state chapters linked by MOU	Respects existing groups; clear roles; scalable	Requires coordination discipline	Yes — best fit
B. Umbrella / affiliate	States remain independent; national is loose coordinating forum only	Minimal friction; easy start	Weak national programs; duplicate events; unclear brand	Short-term only
C. Merger / absorption	States dissolve into one national entity with branches	Single legal body; simple finances	Resistance from established states; loss of local identity	Not recommended unless states vote to merge
D. Service provider	National provides IT, insurance, templates; states pay fee	Clear commercial-style boundaries	Can feel transactional; less community ownership	Optional add-on within federation

8.3 Division of powers: national vs state

Area	National association	State association
Legal identity	Gotabgaa Australia (national constitution)	State entity (own or adopted constitution)
Membership	National register or federated sync; national membership policy	Local enrolment, renewals, welfare eligibility checks
Events	National calendar; cross-state dates; Taunet Nelel branding standards	Local BBQs, sports days, AGMs, city meetups
Finance	National account; benevolence pool; scholarships; national fundraising	State account; local dues; local event revenue; first-line welfare spend
Communications	Website, national email, national social links	State WhatsApp/Facebook with national brand guidelines

Area	National association	State association
Leadership	National Board & Executive elected at national AGM	State executive elected at state AGM
Representation	One state rep per chapter on National Board	State chair or delegate speaks for state at national council
Disputes (internal)	Oversight Council; national mediation stage	First response at state level
External/media	National Chairperson for national matters	State Chair for local press and community partners

8.4 What national offers existing state associations

- **Unified identity** — one national logo, website, and "Gotabgaa Australia" presence
- **National programs** — education, benevolence framework, cultural calendar, youth/women initiatives
- **Voice at scale** — representation in national forums, multicultural councils, partnerships
- **Coordination** — avoid clashing dates; share best practices across states
- **Templates** — constitution, financial policy, welfare forms, AGM agendas
- **Escalation path** — national benevolence when cases exceed state capacity
- **Training** — onboarding for new state officers; governance workshops

8.5 What state associations offer the national body

- **Legitimacy** — national exists because states choose to federate
- **Local delivery** — programs and welfare happen in states, not from a remote national office
- **State Board seat** — state rep brings local priorities into national decisions
- **Quarterly reporting** — membership, events, finances (summary)
- **Implementation** — national policies executed by volunteers on the ground
- **Host rotation** — states may host national cultural events (e.g. Taunet Nelel)

8.6 Membership relationship (suggested options)

Option	How it works	Best when
Option 1 — Single national membership (recommended)	Members join Gotabgaa Australia; automatically members of their state chapter; one fee split or allocated per policy	Clear national strength; simpler welfare rules
Option 2 — Dual registration	Separate state fee + optional national fee; national benefits only if national fee paid	States want financial independence during transition
Option 3 — State-only with national associate	Primary membership with state; national lists “recognised chapter members” without separate fee initially	Early federation phase (first 12 months)

AGM voting rights should be defined in the national constitution (typically financial members of Gotabgaa Australia).

8.7 Financial relationship

- **Separate accounts** — state money stays in state accounts; national money in national accounts
- **No automatic pooling** — transfers only with written approval (dual signatories + Board if above threshold)
- **Optional national levy** — e.g. small % of state fundraising or fixed annual chapter contribution (AGM-approved)
- **National grants to states** — for agreed programs (e.g. youth camp); milestone-based disbursement
- **Shared events** — revenue split agreed before event (host state vs national program fund)

8.8 MOU essentials (national ↔ each state)

Each recognised state chapter signs an MOU with Gotabgaa Australia covering:

1. Recognition as official chapter for [State/Territory]
2. Autonomy of state executive and state AGM
3. Adoption of national brand guidelines and welfare policy minimums
4. Quarterly reporting to National Executive
5. State representative attendance at National Board / Chapter Council
6. Financial separation and any levy or grant terms
7. Dispute escalation (state → national → Oversight Council)
8. Term: renewable annually; withdrawal with 90-day notice and member communication
9. Signatures: National President, Secretary General, State Chair, State Secretary

8.9 When national and state disagree

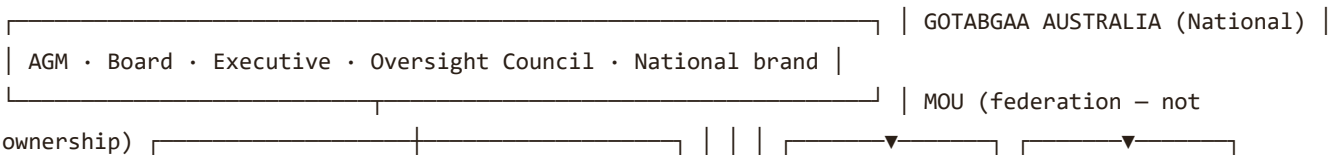
Situation	First step	Escalation
Policy disagreement	State rep raises at Board; discussion and vote	Oversight Council advisory opinion if deadlock
State refuses national program	Program optional unless AGM-mandated for all chapters	Board documents non-participation; no penalty except loss of program benefits
State breach of brand/conduct	National Executive letter; corrective plan 30 days	Oversight Council review; suspension of recognition as last resort
National overreach into state affairs	State Chair writes to Oversight Council	Council investigation; Board must comply with Council recommendation on governance
Financial dispute	Treasurers (state + national) reconcile	Finance & Audit Committee → Oversight Council if needed

8.10 Transition path for associations already operating

Step	Action	Timeline
1	National interim Executive invites each state to federation dialogue	Month 1–2
2	State AGMs discuss MOU; vote to join or defer	Month 2–4
3	First states sign MOU → recognised chapters; listed on website	Month 4–6
4	State reps seated on National Board; first Chapter Council meeting	Month 6
5	Unified membership model chosen at national AGM	Month 6–12
6	Remaining states join or remain informal allies until ready	Ongoing

States that defer federation remain community partners; national does not claim authority over them until MOU is signed.

8.11 Relationship diagram



└───▼───┘ | NSW Chapter | | QLD Chapter | | VIC Chapter | ... SA, WA, ACT | (existing | |
(existing | | (existing | | association)| | association)| | association)| | | | | | State Exec |
| State Exec | | State Exec | | State funds | | State funds | | State funds | | Local members | |
Local members | | Local members | └───┘ └───┘ └───┘ | | | Sydney,
etc. Brisbane, etc. Melbourne, etc. MOU defines: recognition • reporting • brand • programs • dispute
path National does NOT replace state executives or control state bank accounts

Summary: Gotabgaa Australia is the **national forum and federation**. Existing state associations become **recognised chapters** through MOU — equal partners in a national family, with local autonomy and a shared mission: Unity • Heritage • Excellence.

9. State Chapters

Each recognised state or territory chapter manages local affairs under national policy. Recognition follows the **federated partnership model** (Section 8): existing state associations join via MOU rather than being replaced by national.

Chapter	Status
New South Wales (NSW)	Chapter
Victoria (VIC)	Chapter
Queensland (QLD)	Chapter
Western Australia (WA)	Chapter
South Australia (SA)	Chapter
Australian Capital Territory (ACT)	Chapter
Tasmania (TAS)	Chapter
Northern Territory (NT)	Chapter

State Executive (each chapter)

Position	Local responsibility
Chairperson	Chapter leadership
Vice Chairperson	Deputy chapter leadership
Secretary	Records & correspondence
Treasurer	Chapter finances
Welfare Coordinator	Local welfare response
Communications Officer	Local announcements & social media
Youth Representative	Youth programs & voice
Women Representative	Women's programs & voice

Chapter functions

- Manage local affairs
- Recruit members
- Organise events
- Implement national programs

10. Standing Committees

The Board of Directors may establish the following standing committees:

Welfare Committee

Manages welfare programs and emergency support.

Finance & Audit Committee

Reviews finances and budgets.

Education & Scholarship Committee

Supports students and professional growth.

Business & Investment Committee

Promotes entrepreneurship and investments.

Culture & Sports Committee

Coordinates cultural and sporting activities.

Youth & Women Affairs Committee

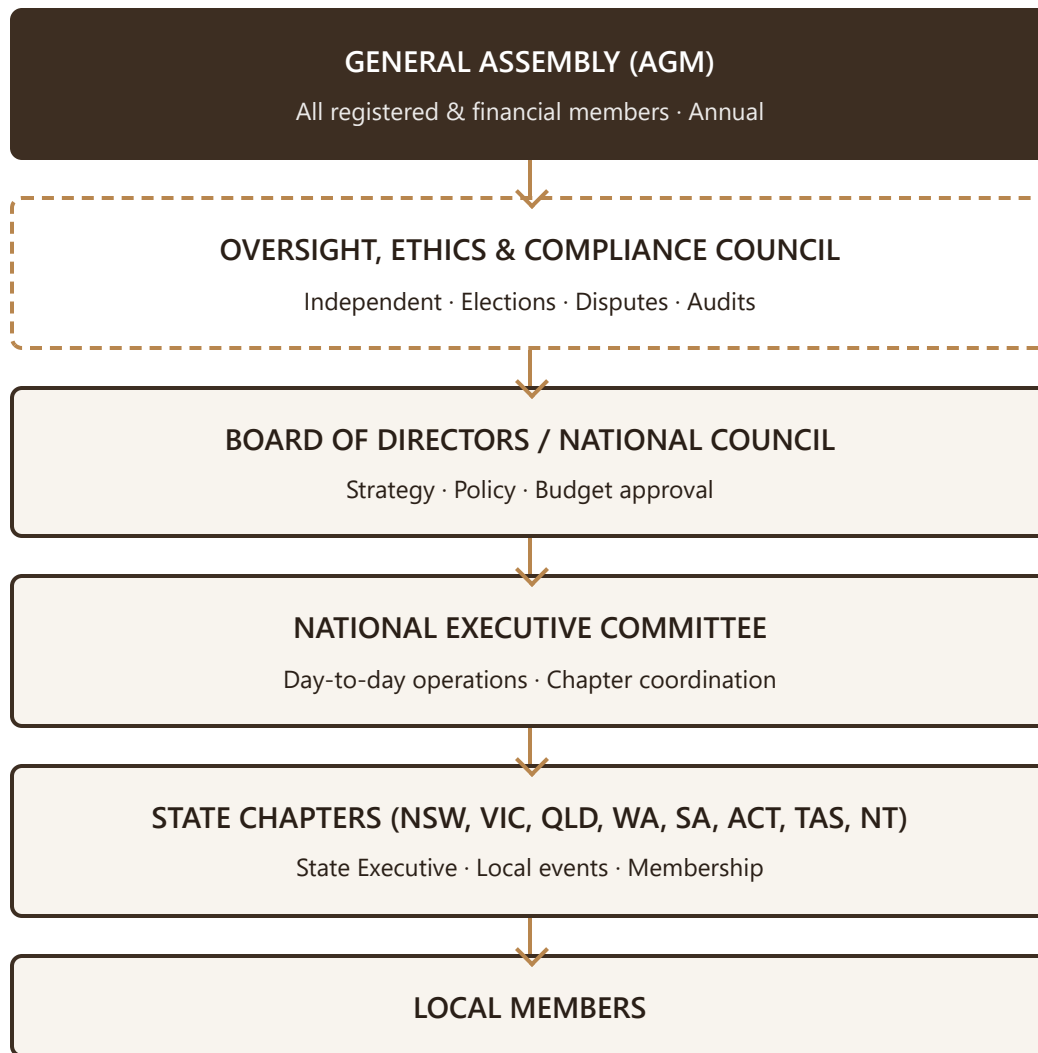
Promotes inclusion and leadership development.

Constitution & Governance Committee

Reviews governance documents and policies.

11. Organisational Hierarchy Diagram

Visual flow from supreme authority to local members. Oversight Council operates independently (parallel oversight).



Dashed box: independent oversight — not subordinate to Executive or Board for ethics/election functions.

Electoral Commission and Advisory Council sit outside daily hierarchy (temporary elections body; advisory elders).

RELATIONSHIP SUMMARY (private reference) AGM —————> elects —————> National Executive
AGM —————> elects —————> Oversight Council Board <— oversees —> National Executive
Board <— approves —> Budgets & major projects Oversight Council <— appoints —> Electoral
Commission (temporary) Oversight Council —> independent of —> Board & Executive State Chapters <—
coordinated by —> National Executive State Chapters —> report to —> Board (via state
representatives)

12. Roles Summary Table

Organ / Body	Type	Key function	Meets
General Assembly (AGM)	Membership organ	Supreme decisions & elections	Annual
Board of Directors	Governance	Strategy, policy, budget approval	Quarterly+
National Executive	Management	Operations & implementation	Regular
Oversight & Compliance Council	Independent oversight	Ethics, elections, disputes	As required
Electoral Commission	Temporary	Run elections	Election periods only
Advisory Council	Advisory	Mentorship & mediation	Bi-annual suggested
State Chapters	Local delivery	Members, events, welfare	Per chapter schedule
Standing Committees	Board sub-groups	Specialist portfolios	Per committee

Best practice: This structure separates **governance** (Board), **management** (Executive), and **oversight** (Compliance Council). It scales well for a national community organisation with multiple state chapters.

13. Detailed Position Descriptions

Key duties for national roles. Final wording should appear in constitution and job descriptions.

12.1 National Chairperson

- Chief spokesperson; chairs Board and Executive meetings
- Sets meeting agendas with Secretary General; represents organisation at major events
- Signs official documents with Secretary General or Treasurer as required
- Leads strategic planning; ensures non-partisan community focus

12.2 Deputy Chairperson

- Acts for Chairperson when absent; leads assigned portfolios
- Supports succession planning and deputy training across chapters
- Mediates inter-chapter coordination issues before escalation

12.3 Secretary General

- Maintains constitution, policies, minutes, and official correspondence
- Manages membership register (or oversees Membership Director)
- Issues AGM notices; coordinates with Electoral Commission during elections
- Safe storage of records (digital archive with backup)

12.4 Treasurer

- Day-to-day banking; payment authorisation per financial policy
- Monthly reconciliations; quarterly reports to Board
- Annual budget preparation with Executive; supports audit process
- Two-signatory rule for payments above threshold (e.g. \$5,000 — set in policy)

12.5 Communications Director

- Website, email, social media aligned with national brand guidelines
- Press enquiries routed through Chairperson; no unauthorised statements
- National newsletter minimum quarterly

12.6 Welfare Director

- Oversees benevolence policy; confidential case handling

- Coordinates with state welfare coordinators; escalates per policy thresholds
- Never discusses individual cases in open meetings

12.7 Programs & Events Director

- Maintains national events calendar; avoids date clashes across states
- Standards for Taunet Nelel, sports days, AGMs, cultural programs
- Post-event reports: attendance, finances, lessons learned

12.8 Membership Director

- Recruitment campaigns; onboarding kit for new members
- Tracks financial vs non-financial members; renewal reminders
- Reports membership growth quarterly to Executive and Board

12.9 Portfolio directors (Education, Business, Youth, Women on Board)

Lead respective standing committees; present annual portfolio plans to Board; coordinate state chapter volunteers in their area.

14. Board vs Executive — Dual Roles

Topic	Board	Executive
Focus	Strategy, policy, oversight	Operations, implementation
Budget	Approves annual budget & major spend	Proposes budget; spends within approval
Staff/volunteers	Sets volunteer policy	Recruits, schedules, supervises day-to-day
State chapters	State reps vote on national policy	Programs Director coordinates execution
Same person?	Executive officers typically sit on Board ex officio with vote. Oversight Council members must not hold Board or Executive roles.	

15. Meetings, Quorum & Voting

Body	Frequency	Quorum	Voting
AGM	Annual	25% financial members or 50 members (min)	One vote per financial member
Board	Quarterly+	Majority of directors	One vote per director; Chair has casting vote if tie
Executive	Monthly	Majority of executive officers	Consensus preferred; majority if needed
Oversight Council	As required	3 of 5 members	Majority; Chair has casting vote
State chapter AGM	Annual	Per state constitution	State financial members

16. Elections Process

1. **Timeline:** Oversight Council announces election date at least 60 days before AGM
2. **Nominations:** Open period 30 days; candidates must be financial members 12+ months (configurable)
3. **Vetting:** Electoral Commission checks eligibility, conflicts, code of conduct acceptance
4. **Campaign:** Fair access; no misuse of organisation resources for one candidate
5. **Voting:** Secret ballot at AGM or approved electronic vote with audit trail
6. **Results:** Electoral Commission certifies; Oversight Council publishes within 48 hours
7. **Handover:** Outgoing officers transfer records within 14 days
8. **Terms:** 2–3 years staggered; maximum two consecutive terms (recommended)

17. Membership Categories & Rights

Category	Requirements	Rights
Full member	Kalenjin individual/family; fees paid; application accepted	Vote at AGM; welfare eligibility per policy

Category	Requirements	Rights
Associate member	Spouse, friend, supporter	Programs access; voting as per constitution
Youth member	Aged 13–17 (or under 18)	Youth programs; transitions to full at 18
Honorary member	Board nomination for exceptional service	Recognition; no obligation; voting optional

Financial member = fees current for the membership year. Only financial members vote at AGM and in national elections.

18. Financial Governance

17.1 Approval thresholds (illustrative — set in financial policy)

Amount (AUD)	Approver
Up to \$500	Treasurer or delegated officer
\$501 – \$5,000	Treasurer + Chairperson (or two signatories)
\$5,001 – \$20,000	Executive resolution; notify Board
Above \$20,000	Board approval in advance (except emergency welfare per policy)

17.2 Controls

- Separate national and state bank accounts; no commingling without documented transfer
- Annual financial report to AGM; independent review every 2–3 years
- Finance & Audit Committee reviews quarterly statements before Board
- Donations receipted; public summary of major funds published annually

19. State Chapter Standards

Operational detail for recognised chapters under the federation model (Section 8).

18.1 Recognition criteria

- Minimum 15–25 committed families (set in national constitution)
- Interim state executive named (Chair, Secretary, Treasurer minimum)
- State constitution or adoption of national template
- Board ratification at meeting following Executive recommendation

18.2 Quarterly reporting to National Executive

- Membership numbers (full / associate / youth)
- Events held and attendance estimates
- Financial summary (income, expenditure, balance)
- Welfare cases supported (summary only — no private details)

- Planned events for next quarter

20. Standing Committees — Expanded Charters

Committee	Chair	Key deliverables
Welfare	Welfare Director	Benevolence policy, case procedures, annual welfare report
Finance & Audit	Treasurer	Quarterly review, audit preparation, fraud prevention
Education & Scholarship	Education Director	Scholarship criteria, mentor list, student events
Business & Investment	Business Director	Networking events, investment education workshops
Culture & Sports	Programs Director (shared)	Cultural calendar, sports day standards, Taunet Nelel planning
Youth & Women Affairs	Youth/Women reps	Leadership camps, inclusion policy, safe spaces policy
Constitution & Governance	Secretary General (shared)	Policy review, constitution amendments draft for AGM

21. Dispute Resolution Procedure

Stage	Actor	Action	Timeline
1	Parties + State Chair	Direct good-faith discussion	14 days
2	State Vice Chair / Welfare lead	Internal mediation	14 days
3	National Deputy Chair or Programs Director	National mediation	21 days
4	Oversight Council	Formal hearing; binding recommendation on conduct/governance	30 days
5	Advisory Council (optional)	Cultural mediation for community harmony	As agreed
6	External	Legal or professional mediation if required	Per constitution

22. Code of Conduct & Conflict of Interest

21.1 All officers and volunteers must:

- Treat members with respect; zero tolerance for harassment or discrimination
- Keep welfare and personal data confidential
- Not use Gotabgaa name for personal political campaigning
- Declare conflicts of interest before relevant votes (written register updated annually)
- Separate personal business from organisation transactions

21.2 Conflict examples requiring declaration

- Family member applying for benevolence or scholarship
- Vendor owned by an officer receiving contract
- Dual role in another organisation with competing interests

23. Reporting & Communication Lines

MEMBER → State Chapter Executive → National Executive → Board of Directors | | | ↪ AGM
(annual accountability) | ↪ Oversight Council (ethics, elections, disputes – independent) MEDIA /
PUBLIC → National Chairperson (or Board-designated spokesperson) WELFARE REQUEST → State Welfare
Coordinator → National Welfare Director WEBSITE / SOCIAL → Communications Director (content) →
Board (policy) FINANCE → Treasurer → Finance & Audit Committee → Board → AGM

24. AGM Agenda Template

1. Welcome and acknowledgment of country
2. Confirmation of quorum and apologies
3. Minutes of previous AGM — approval
4. National Chairperson’s annual report
5. Secretary General’s report (membership, governance)
6. Treasurer’s report and audited accounts — approval
7. Programs & Events Director — national programs report
8. Welfare Director — confidential summary only
9. State chapter highlights (each state rep, max 5 minutes)
10. Oversight Council annual report
11. Elections (if scheduled) — Electoral Commission process
12. Constitutional amendments (if any) — with prior notice
13. Strategic plan ratification (if presented)
14. General business and member questions
15. Close and thanks

25. Definitions

AGM	Annual General Meeting of financial members — supreme governing meeting
Board	Board of Directors / National Council
Executive	National Executive Committee — operational leadership
Financial member	Member with current fees paid for the membership year
Chapter	Recognised state or territory branch of Gotabgaa Australia
Oversight Council	Independent ethics, elections, and compliance body
Electoral Commission	Temporary body appointed to run a specific election

26. Implementation Roadmap

Phase	Timeline	Actions
Phase 1 — Foundation	0–3 months	Draft constitution; interim Executive; confirm state list; publish governance model
Phase 2 — Legitimacy	3–6 months	First AGM; elect Executive and Oversight Council; seat Board; adopt financial policy
Phase 3 — Operations	6–12 months	Standing committees active; benevolence policy live; national events calendar; state reporting
Phase 4 — Maturity	12+ months	Financial audit; Advisory Council seated; refine constitution; expand TAS/NT if ready

Gotabgaa Australia — Unity • Heritage • Excellence

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For leadership review. Not legal advice. Constitution and By-Laws should be drafted with qualified advisers.